

25STCV27834 25STCV27834

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C06%2F25%2F2026

Source SHA-256: 067e101f601cbe86b47d1c8f98070964e963db74ba3fb650c75e1e8cdcdf2233

Case Number: 25STCV27834 Hearing Date: June 25, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 25, 2026

Case Name: Nakayoshi, et al. v. JPMorgan Chase Bank, NA, et al.

Case No.: 25STCV27834

Matter: Motion for Leave to File First Amended Complaint

Moving Party: Plaintiffs Asami Nakayoshi and Kazue Uchida

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiffs Asami Nakayoshi and Kazue Uchida seek leave to amend the allegations as to damages with respect to Defendant Lily Hirahara.

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) “[T]here is a strong policy in favor of liberal allowance of amendments.” (*Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court. (See generally *Weil & Brown*, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶¶ 6:637 et seq.)

Because there is no opposition, it is not apparent that there would be any prejudice from the amendment. Therefore, the Motion is granted.

The FAC is to be filed within 10 days.

Moving party to give notice.